

SYNTHETIC APPELLATE DOCKET — NOT FILED — ALL FACTS AND IDENTIFIERS
ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

ORAL-ARGUMENT CALENDAR NOTICE

Calendar setting

Issued April 20, 2026.

Leora Benton v. Blue Cedar Compliance, Inc., No. SYN-CA4-26-CV-4101, is calendared for oral argument on May 20, 2026, at 10:00 a.m. in Richmond, Virginia. The court has allotted twenty minutes per side. Appellant may reserve up to two minutes for rebuttal by notifying the courtroom deputy before argument begins. Counsel who will argue shall enter an appearance at least thirty minutes before the session.

The panel requests focused discussion of two questions. First, what information about Tessa Wynn was timely disclosed, what materially new subject appeared in the November declaration, and how the Rule 37 factors apply to the actual cure and scheduling record. Second, whether the admitted evidence, taken together and in Benton's favor, permits a reasonable finding of pretext and but-for causation without relying on the excluded subject. The questions do not limit counsel's obligation to address jurisdiction and the standards of review.

ORAL-ARGUMENT CALENDAR NOTICE

Record and presentation directions

Counsel shall use the joint appendix labels JA1 through JA262 when referring to the district record. A citation to JA194–JA195 must identify whether it is offered to review the exclusion ruling or, impermissibly, as proof on the admitted merits record. Counsel should be prepared to explain how the remedy on one issue affects, or does not affect, the remedy on the other. No supplemental appendix is authorized by this notice.

The session will proceed on the briefs and certified record already filed. Demonstratives, if used, must reproduce record material accurately, carry an exact JA citation, and be exchanged with opposing counsel before the session. They will not become evidence. The clerk shall serve this notice electronically on April 20, 2026. The argument date is fixed unless the court enters a later order for good cause.